

shakuntala

IN THE HIGH COURT OF BOMBAY AT GOA
APPLN. FOR APPOINTMENT OF ARBITRATOR NO.13 OF 2024

VIKRAM SHAH

Versus

RIVA TRINDADE AND 3 ORS

... APPLICANT

... RESPONDENTS

Mr. Kaif Noorani, Advocate for the Applicant.

CORAM:- BHARAT P. DESHPANDE, J.

DATED :- 10th July, 2024

P.C.

1. Heard Mr. Noorani learned counsel appearing for the applicant.
2. This is an application for the appointment of arbitrator under Section 11(6) of Arbitration and Conciliation Act, 1996.
3. Vide Articles of Association executed on 01.04.2013, the parties agreed that in case of dispute arising out of the said agreement, the same shall be referred to the Arbitrator. Clause 35 of the said agreement refers to the intention of the parties to go before the Arbitrator.
4. Mr. Noorani submits that party to the first part expired and his legal heirs inherited the said property. Since, the partnership is not going forward and legal representatives are not cooperating, a notice

having an arbitration clause was issued to Respondents. However, vide their reply dated 11.03.2024, they refused to refer the matter to the Arbitrator.

5. Issue notice to Respondents returnable on 07.08.2024.
6. Apart from regular service, service by other modes is permitted.

BHARAT P. DESHPANDE, J.

IN THE HIGH COURT OF BOMBAY AT GOA, PORVORIM

Application for Appointment of Arbitrator No. 13/2024

HMR-4729/24

Vikram Shah.,

... Applicant

Versus

Riva Trindade And 3 Ors.,

... Respondents

To,

- R-1 Mr. Riva Trindade, Major of age, R/o Palbrika Mansion, NIO Circle, Dona Paula, Tiswadi, Goa - 403004
- R-2 Mrs. Albertina Trindade, Major of age, R/o Palbrika Mansion, NIO Circle, Dona Paula, Tiswadi, Goa - 403004.
- R-3 Mrs. Karita Trindade, Major of age, R/o Palbrika Mansion, NIO Circle, Dona Paula, Tiswadi, Goa - 403004.
- ✓ R-4 Mr. Murlidhar Sadarangani, s/o Shamdas Jetaram Sadarangani, Aged 54 years, Indian, R/o S-3, Eden Hall, Dr. Annie Beasant Road, Worli, Mumbai - 400018.

WHEREAS the above named Applicant through Advocate Kaif Noorani, has filed to this Hon'ble Court the above Application for Appointment of Arbitrator No.13/2024 for appointment of Arbitrator under Section 11 of the Arbitration and Conciliation Act, 1996 (copy enclosed).

AND WHEREAS the above Application for Appointment of Arbitrator No. 13/2024, came up before this Hon'ble Court (Coram: BHARAT P. DESHPANDE, J.) on 10/07/2024 and upon hearing Mr. Kaif Noorani, Advocate for the Applicant; this Hon'ble Court has passed the following order:

P.C.

1. **Heard Mr. Noorani learned counsel appearing for the applicant.**
2. **This is an application for the appointment of arbitrator under Section 11(6) of Arbitration and Conciliation Act, 1996.**
3. **Vide Articles of Association executed on 01.04.2013, the parties agreed that in case of dispute arising out of the said agreement, the same shall be referred to the Arbitrator. Clause 35 of the said agreement refers to the intention of the parties to go before the Arbitrator.**
4. **Mr. Noorani submits that party to the first part expired and his legal heirs inherited the said property. Since, the partnership is not going forward and legal representatives are not cooperating, a notice having an arbitration clause was issued to Respondents. However, vide their reply dated 11.03.2024, they refused to refer the matter to the**

Arbitrator.

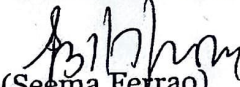
5. Issue notice to Respondents returnable on 07.08.2024.
6. Apart from regular service, service by other modes is permitted.

You are, therefore, required to take note of the above order of this Hon'ble Court. The above Application for Appointment of Arbitrator No. 13/2024, will come up for Admission on 07/08/2024 at 10.30 a.m. or thereafter on any other day as per the convenience of this Court and that if no appearance is made on your behalf either in person or by an Advocate of this Court or an Agent duly authorized and instructed by you, it will be heard and determined in your absence.

If you, fail to appear and show cause as aforesaid, this Court will pass an order as prayed for by the applicants or such other order as this Court may deem proper.

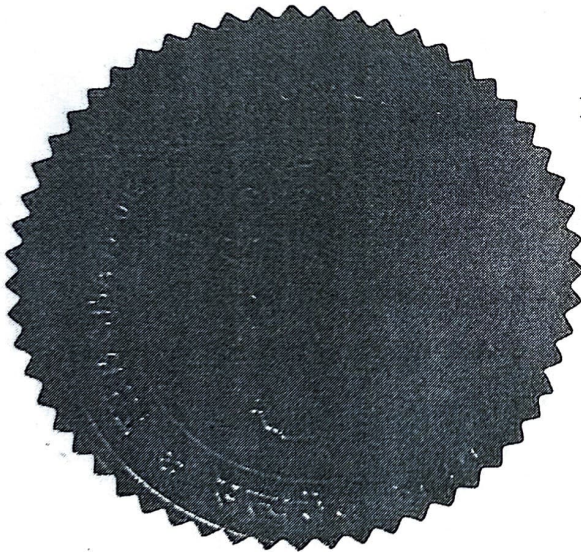
WITNESS, the Hon'ble Shri Justice Devendra Kumar Upadhyaya, the Chief Justice of the High Court of Bombay at Bombay, aforesaid this 30th day of July, 2024.

By order of the Court,


(Seema Ferrao)

Assistant Registrar,
High Court of Bombay at Goa,
Porvorim, Goa.

srp



Receipt on 16/8/2024